

Notice of Exemption

To: ☒ Office of Planning and Research P0 Box
3044, 1400 Tenth Street, Room 222
Sacramento, CA 95812-3044

☐ County Clerk
County of Santa Clara _____

From: San Francisco Bay Regional Water Quality
Control Board
1515 Clay Street, Suite 1400
Oakland, California 94612

Project Title:

City of San José and City of Santa Clara, San José/Santa Clara Water Pollution Control Plant, San José, Santa Clara County - Reissuance of NPDES Permit

Project Location - Specific:

The permit covers the San José/Santa Clara Water Pollution Control Plant, City of San José wastewater collection system, and City of Santa Clara wastewater collection system. The treatment plant is located at 700 Los Esteros Road, San José. It discharges advanced secondary-treated wastewater to Artesian Slough via an outfall (37.4398°, -122.9581°).

Project Location – City: San José Project Location - County: Santa Clara

Description of Project:

Waste Discharge Requirements (NPDES permit) for wastewater discharge to Artesian Slough.

Name of Public Agency Approving Project: California Regional Water Quality Control Board

Name of Person or Agency Carrying Out Project: California Regional Water Quality Control Board

Exempt Status: (check one)

- ☐ Ministerial (Sec. 21080(b)(1); 15268);
☐ Declared Emergency (Sec. 21080(b)(3); 15269(a));
☐ Emergency Project (Sec. 21080(b)(4); 15269(b)(c));
☐ Categorical Exemption. State type and section number:
☒ Statutory Exemptions. State code number: Section 13389 of the California Water Code

Reasons why project is exempt:

Project is adoption of an NPDES permit.

Lead Agency: San Francisco Bay Regional Water Board

Contact Person: William Burrell

Area Code/Telephone/Extension: (510) 622-2317

If filed by applicant:

1. Attach certified document of exemption finding.
2. Has a Notice of Exemption been filed by the public agency approving the project? ☐ Yes ☐ No

Signature:  Digitally signed by
Eileen M. White
Date: 2025.12.18
17:25:38 -08'00'
Eileen White Date: December 18, 2025 Title: Executive Officer

☒ Signed by Lead Agency

☐ Signed by Applicant

Date received for filing at OPR: _____